

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 10
JUDICIAL OFFICER: JULIA CAMPINS
HEARING DATE: 09/21/2026

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties email or call the department rendering the decision to request argument and to specify the issues to be argued. Calling counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of their decision to appear and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (*Local Rule 3.43(2).*)

Note: In order to minimize the risk of miscommunication, parties are to provide an **EMAIL NOTIFICATION TO THE DEPARTMENT OF THE REQUEST TO ARGUE AND SPECIFICATION OF ISSUES TO BE ARGUED**. Dept. 10's email address is: dept10@contracosta.courts.ca.gov. Warning: this email address is not to be used for any communication with the department except as expressly and specifically authorized by the court. Any emails received in contravention of this order will be disregarded by the court and may subject the offending party to sanctions.

Submission of Orders After Hearing in Department 10 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Courtroom Clerk's Calendar

1. 9:00 AM CASE NUMBER: MSC21-00653
CASE NAME: WANG BROTHERS VS EAST BAY MUD
CLOSING ARGUMENTS
FILED BY:
TENTATIVE RULING:

I. INTRODUCTION

In this matter, Wang Brothers Investments (Plaintiff) has brought suit against East Bay Municipal Utility District (EBMUD) (Defendant) for damages arising out of an incident where the water main on the Wang Brothers Property burst, flooding the property and causing water and particulate to enter several units. By agreement of the parties, the case proceeded first to Phase I trial which was a bench trial to determine EBMUD's liability under inverse condemnation.

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After approximately two weeks of trial, followed by supplemental briefing, the Court now issues this final decision on Phase I.

II. FACTUAL BACKGROUND

In 1985, an entity by the name of Atlas/Hilltop Associates began to develop a property on what was then Atlas Road—now Richmond Parkway—in Richmond, CA. The design was for there to be three buildings with separate addresses on the one parcel. The three buildings are 3033, 3065, and 3095 Richmond Parkway. To develop the property, among other things, Atlas/Hilltop needed to get approval from the fire department. The fire department required there to be four hydrants on the property, around where the buildings were planned. To get water service to those hydrants, as well as to the buildings for fire services—i.e. sprinklers—and domestic services—i.e. typical plumbing for bathrooms, sinks, etc—Atlas/Hilltop needed to get EBMUD services. This would require an extension off of the main EBMUD pipeline, which ran down what is now Richmond Parkway.

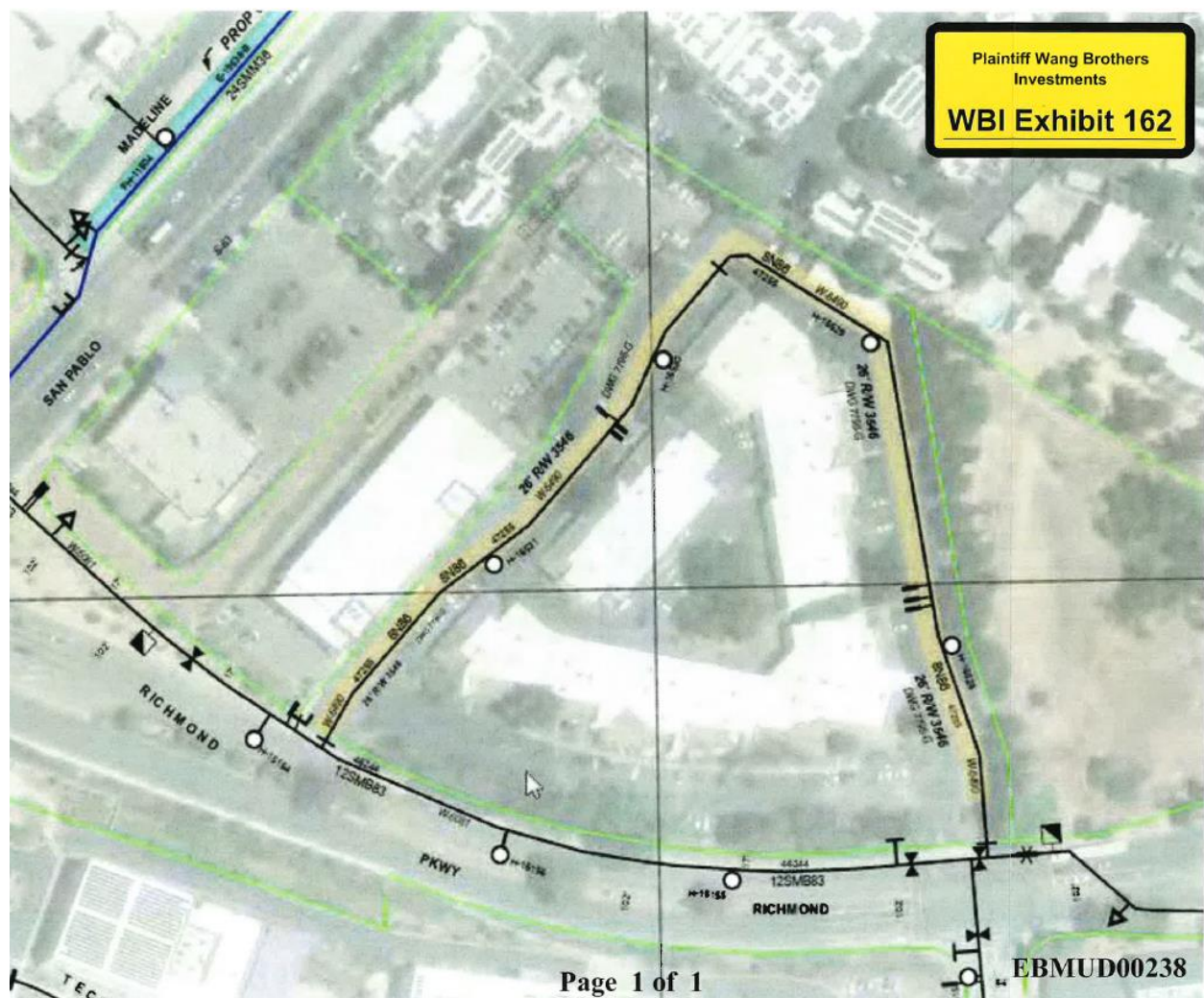
For new services, EBMUD and a developer will coordinate to craft a compliant pipeline design and installation.¹ EBMUD designs the pipeline generally and requires the developer to grant it an easement permitting it to maintain the pipeline. For pipeline installation over 1000 feet, EBMUD requires the applicant developer to hire a contractor to install the pipeline, but EBMUD will inspect and approve the construction, and EBMUD will only permit the pipeline to begin receiving services once it has satisfied all of EBMUD's requirements. The developer is responsible for all costs of construction and design. Although EBMUD takes on the costs of maintenance after the construction, it does not use its funds for construction of pipelines built at the request of individual developers or groups of developers.

Here, Atlas/Hilltop was the applicant and it therefore hired a contractor to build the pipeline. All documents support that the “justification” for the pipeline extension was Atlas/Hilltop's development. Ultimately, the design was a loop, where the 8-inch main extension leaves the large general 12-inch pipeline on the western edge of the

¹ The Court received testimony regarding procedures and regulations in place both in 1985/1986 and the present. There was little difference, so this decision will speak in generalities where the evidence supports that applicable procedures and regulations did not change. Where there was no evidence regarding procedures during the building phase, the decision will endeavor to note that.

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development, proceeds northeast to the top of the development, then returns south east to rejoin the 12-inch pipeline. It is shaped like something between a triangle and a trapezoid. The little white dots with black edges are the fire hydrants. The black protrusions from the water main—three on the west side (facing east) and three on the east side (two facing east and one facing west) are service connections. Exhibit 162, which is oriented with north at the top, shows all of these features. The yellow shading is the easement, and the faint green lines are the property boundaries (after the 2016 division mentioned below). The black line along Richmond Parkway is the 12-inch main.



EBMUD required the Wang Brothers pipeline extension to be a loop. Regulations—in particular Section 4 of the EBMUD regulations—would not permit the pipeline to dead-

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end at hydrants for water quality purposes. All experts who testified as to this issue agreed that the loop design is the ideal design.



In 2016, Wang Brothers purchased the subject property. Soon after, Wang Brothers sold an approximately two-acre portion on the west side of the property to another developer, who built an auto-body shop. The auto-body shop lies to the western side of the pipeline. It receives no water services from the Wang Brothers pipeline extension. EBMUD regulations would not permit it to receive services directly from the Wang Brothers, because it is now a separate parcel and EBMUD does not permit one parcel to receive services from another parcel. The auto-body shop has a connection *directly* to the 12-inch Richmond Parkway pipeline, and has a hydrant directly in front of its building. The auto-body shop has an easement permitting entry onto the Wang

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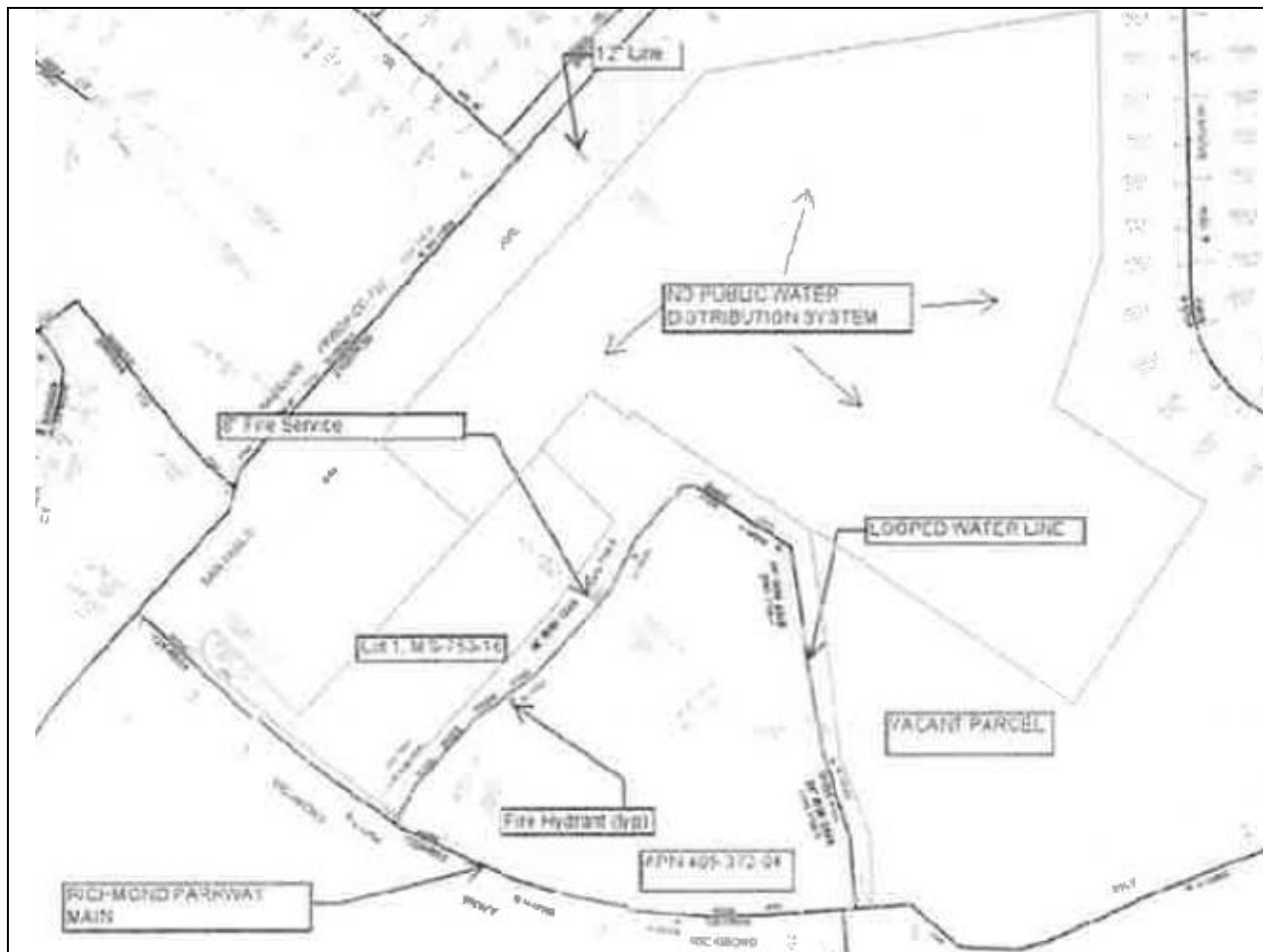
Brothers property for vehicles to enter the shop's back lot.

To the east of the Wang Brothers property is a vacant lot. It has no development, and no water service. On three occasions, there were fires on that vacant lot property. On all three occasions, fire department vehicles came onto the Wang Brothers property to fight fires on the vacant lot, but there is scant evidence they used Wang Brothers hydrants to get water to do so. Fire department engines come equipped with tanks of water and can refill at fire hydrants, but no witness credibly saw the hoses actually attached. Firefighters are permitted to use private hydrants on private property to fight fires.

To the north of the Wang Brothers property is an apartment complex. It is separated from the Wang Brothers property by fencing as well as blocked by containers. The apartment complex is connected to a different EBMUD pipeline by a simple connection—it does not have a loop. Instead, EBMUD appears to have a pipe that goes to the apartment complex, and the remainder of the distribution is entirely run by the apartment complex, including the feeding of 6 hydrants on the property.

Exhibit 100:

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There is an unused portion of land at the northwest corner of the Wang Brothers property. If that land were ever parceled out to another owner, EBMUD would require the laying of new piping, almost certainly all the way to the 12-inch main on Richmond Parkway, with an easement across the Wang Brothers property to permit the construction and maintenance. There is no credible evidence that this portion of land would be permitted to tap directly into the Wang Brothers main extension loop if it were owned by a different entity.

Wang Brothers rents out the units in its three buildings to various entities. The facility is, essentially, a business park, with parking and some extra space.

Between 1986 and 2020, the only issues relating to EBMUD and the Wang Brothers property involved two times when vehicles sheared off the hydrants and they

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had to be replaced. EBMUD performed the work to repair both times, at no cost to Wang Brothers.

On January 18, 2020, a portion of the Wang Brothers main extension burst, releasing a large amount of water in a very short time. The property promptly flooded, as the storm drains could not keep up with the amount of water, especially given that the water was carrying particulate matter from the property. The fire department arrived, but the water could not be shut off until EBMUD personnel arrived and shut down the valves at either end of the loop (at the main pipeline). The water then drained and cleanup and repair began. EBMUD provided the cleanup and repair crews. EBMUD did not charge Wang Brothers for the water main burst, the water that leaked, removal of sediment from storm drains, or the removal of mud from the surface of the property.

III. LEGAL STANDARD

“An inverse condemnation action . . . is an eminent domain action initiated by one whose property was taken or damaged for public use.” (*Pacific Bell v. City of San Diego* (2000) 81 Cal.App.4th 596, 601; see Cal. Const., art. I, § 19.) “The fundamental policy underlying the concept of inverse condemnation is that the costs of a public improvement benefiting the community should be spread among those benefited rather than allocated to a single member of the community.” (*Pacific Bell*, 81 Cal.App.4th at p. 602; see *Belair v. Riverside County Flood Control Dist.* (1988) 47 Cal.3d 550, 558.)

IV. DISCUSSION

The two most issues for the Court to address here are whether the Wang Brothers main extension was a public use and, if so, whether EBMUD is liable for damages caused by the rupture.

A. Public Use

“A public use is ‘a use which concerns the whole community as distinguished from a particular individual or a particular number of individuals.’” (*Customer Co. v. City of Sacramento* (1995) 10 Cal.4th 368, 381 (quoting *Miller v. City of Palo Alto* (1929) 208 Cal. 74, 77.) Although the Wang Brothers expert Douglas Flett opined that the main pipeline extension was for public use because it was under EBMUD’s control, operated by EBMUD, maintained by EBMUD, and integrated into the EBMUD system without check

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valves, that is not the standard. There are helpful and relevant appellate cases on point, in particular *Cantu v. Pacific Gas and Electric Co.* (1987) 189 Cal.App.3d 160, and *Barham v. Southern Cal. Edison* (1999) 74 Cal.App.4th 744, as well as *Foley Investments, L.P. v. Alisal Water Corp.* (2021) 72 Cal.App.5th 535, 540-541, which discusses *Cantu* and *Barham*. While it is easy to get lost in small facts here and there, the essential question is whether the improvement serves a benefit to the public—and therefore should be paid for by the public at large—or whether the improvement is really for the benefit of one or a small number of private parties—and therefore they should bear the cost. (See, e.g., *Pacific Bell Telephone Co. v. Southern California Edison Co.* (2012) 208 Cal.App.4th 1400, 1406, fn. 4 (noting the importance of the private contract in *Cantu*).)

Foley contains extremely helpful discussion and the Court will quote it at length. In *Foley*, as here, the case arose out of a water main rupture. There, the Santana Apartments (Plaintiff property) were serviced by Alisal Water Corp (Defendant Alco). Similarly to here, the court held a Phase I trial on inverse condemnation liability. The court found that there was no “public use,” and the appellate court affirmed. The decision rested on three main facts:

First, the court found it significant that Alco installed the Santana main pursuant to a contract, rather than pursuant to its eminent domain authority. Second, the court found that although Alco's use of a valve rather than a cap “is arguably a sign that further distribution was intended,” the record contained “no evidence that the valve was ever opened,” which “supports the conclusion that [Alco] did not use the [Santana] main as a part of its overall distribution system, and did [*541] indeed use the valve as a cap.” Third, the court consequently found the Santana “main only serviced the residents of the apartment complex and was not designed to deliver water over a greater area.”

(*Foley*, supra, 72 Cal.App.5th at 540-541.)²

First, here, as in *Foley* and *Cantu*, the water main extension was installed

² In its Reply brief, Wang Brothers shifts to a different set of cases, culminating in *Shenson v. County of Contra Costa* (2023) 89 Cal.App.5th 1144. (See also *Ruiz v. County of San Diego* (2020) 47 Cal.App.5th 504, 518; *DiMartino v. City of Orinda* (2000) 80 Cal.App.4th 329, 337-338.) These cases all involve stormwater drainage systems, which have a specific set of factors, and *Shenson* fails to mention *Foley*, while *Foley* fails to mention the prior cases.

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pursuant to a contract, rather than pursuant to eminent domain authority. Wang Brothers had to grant EBMUD an *easement* to permit the installation and maintenance. EBMUD did not make the type of “economic business decision” that justifies imposing inverse condemnation liability. (*Id.* (quoting *Cantu* at p. 165).) Although the easement is wide, the Court can find no authority indicating that a large easement that directly tracks a main extension makes it for public use. Moreover, while EBMUD pays to maintain the pipelines, the developer paid to install them and paid all fees to make modifications for services to the property.

Second, there was no evidence that water was ever used for any other property—except *perhaps* for hydrant use, discussed immediately below—and EBMUD would have found Wang Brothers in violation of their services if anyone else used the water. The design of the loop was exclusively for the development of the property. If Atlas/Hilltop had not developed the property, there is absolutely no indication there would be any water services there; it would look much like the vacant property to the east of Wang Brothers, which has no water services other than fire hydrants along Richmond Parkway. Again, EBMUD “constructed and maintained a [8-inch] main directly on the Property (as opposed to merely delivering water to the Property’s boundary) specifically to meet the flow requirements of the fire hydrants, which benefit only the Property. (*Id.* (quoting *Cantu* at p. 165 [“the trench was installed specifically to furnish electrical service for plaintiffs and their neighbors”].)

The hydrants were a source of much discussion at trial—perhaps arising out of the Court’s decision denying summary judgment. The Court does not find that there is any evidence the hydrants were used for any other properties. The sole witness on this issue, Antonio Pinos Benitez, did not credibly testify that he saw a hose attached to the hydrant during firefighting operations. Even if they were, however, that would not convert the main to public use. First, the hydrants were installed *on* Wang Brothers property as *required* by the fire marshal so *that* Wang Brothers property would have adequate fire protection. That they may come in handy to fight a neighboring fire does not make the water main public any more than it would for a private lake being used as a water source to fight a rural fire. Moreover, there are public hydrants across from the vacant lot that could also be used for firefighting. They may be less convenient, but they exist. The fire marshal made the determination for the need for fire hydrants on the basis of a developer construction project. There is simply no evidence that EBMUD intended for

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this water main to be used for the public.

Third, there is nothing to indicate that the main was “*designed* to deliver water over a *greater area*.” (*Id.*) Indeed, the water main *does not* deliver water over a greater area. The loop design leaves and returns to the same major pipeline. It is not an extension into a new area. Although Plaintiff’s Expert Douglas Flett opined that the main extension was a public use because EBMUD could use the extension for further development, and the lack of check valves meant there was not restriction on other entities using water from the main extension now, that opinion was conclusively rebutted by EBMUD’s expert Jack Flynn, who stated that such usage would be illegal. The main extension “serves no customers other than those that are actually on” the Wang Brothers property.” (*Id.* at p. 544) “Also as with the trench in *Cantu*, and unlike the power lines in *Barham*, the [Wang Brothers main extension] does not provide ‘service to the public at large’ (*Barham, supra*, 74 Cal.App.4th at p. 754)) via facilities ‘designed to transmit [service] over a much greater area’ (*Cantu, supra*, 189 Cal.App.3d at p. 164).” (*Id.*)

Finally, there was evidence that the Wang Brothers intends to subdivide the property into condominiums. This does not change the analysis. Condominiums, like apartment complexes or small housing developments, are still a single common-interest property. They are not a larger public-use. (See *Foley, supra*, at p.545 (distinguishing the *Foley* property and the subdivision in *Cantu* from the “dispersed households in *Barham*).)

B. Inherent Risk and Causation

Even if the Court were to find a public use, there would still need to be a finding of causation. The Court is guided by *City of Oroville v. Superior Court* (2019) 7 Cal.5th 1091, 1106. Wang Brothers attempts to confine *City of Oroville* to cases involving comparative fault, but nothing in *City of Oroville* limits its holding to those situations. *City of Oroville* is straightforwardly a case instructing how to assess causation in an inverse condemnation case, under the same risk analysis noted above—public improvements should have public responsibility:

A court assessing inverse condemnation liability must find more than just a causal connection between the public improvement and the damage to private property. What we hold is that the damage to private property must be substantially caused by an inherent risk presented by the deliberate design, construction, or maintenance of the public improvement. This

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approach aligns with how we have previously analyzed inverse condemnation liability cases. It also protects private property owners by allocating the financial losses resulting from the public improvement across the community and provides public entities with an incentive to internalize the reasonable risks of their public improvements.

(*Id.*)³

Several issues can be dispensed with quickly. EBMUD argued that the damage to the property was exacerbated by improper sloping on the property, inadequate drainage, and insufficiently water-proof doors. The Court finds none of those contributed substantially to the water incursion. A large amount of water at a very high pressure came out of a ruptured main very quickly. Nothing that Wang Brothers could have reasonably done as to these three issues would have mitigated the internal damage.

Similarly, EBMUD did not cause the rupture or damage because of loop design or faulty maintenance. The pipe was the appropriate size for the water delivery needs of the property. It was not too big. The loop design was the best way to service the property *and* to maintain water quality. It is a normal and preferred design. There was no reason to believe these 36-year-old pvc pipes would rupture. Wang Brothers's suggestion that the requirement that the loop be shut off at valves at both end is unavailing, as they offer not alternative that would be *less* risky.

Wang Brothers argues that EBMUD's maintenance strategy also caused inherent risk. The argument is that because EBMUD relies on customers to report a problem, it is a cost-saving measure that fits under the inherent risk formula of *City of Oroville*. But, again, Wang Brothers presented no evidence of a more effective, more costly maintenance program for underground water mains. In other words, how else would EBMUD have known about the potential defects discussed below, especially since the pipes were still within the manufacturer's useful life guidelines?

The Court received photographs of the ruptured water main at Exhibit 216. Experts used these photographs to testify as to the cause. Pages 14 and 15 are below.

³ *Locklin v. City of Lafayette* (1994) 7 Cal.4th 327, cited on reply by Wang Brothers, cannot and does not limit this later holding. The Court here is not engaged in apportionment or comparative fault. The Court is assessing whether EBMUD is liable under the *Oroville* rubric.

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So what caused the main to burst? Interestingly, Wang Brothers presented no theory at trial. Their sole expert on this issue, Douglas Flett, had no explanation—he had to retract his initial cause opinion when he got more information. At trial, he stated that there was a split bell at the spot of the rupture, but he could not state whether the split bell was the *cause* or the *effect* of the rupture. He additionally opined that the plastic of the PVC pipe failed. This conclusion was based on photographs that he testified showed warping of the pipe. EBMUD's expert Roberts McMullin did not agree that the photograph showed pipe warping; instead he said the rippling effect on the photograph could very well have been an optical illusion from spilling water. The Court agrees with McMullin. The photograph of the worker's fist on the pipe does not show any warping, and the

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rippling at the end of the pipe appears to be an optical illusion.

Finally, McMullin opined that the cast iron fitting did not appear to be anchored in concrete, as it should have been. Again, McMullin was uncertain whether the particular cast iron fitting visible in the photograph was one that was required to be anchored. The as-built drawing seems to suggest that it should have been, but given that there was no testimony that this failure to anchor actually caused or contributed significantly to the rupture—only that it seemed unusual—and the ambiguous testimony as to whether anchoring was best design, the Court cannot find that the failure to anchor this particular fitting caused the rupture. Wang Brothers seeks an adverse inference on the basis of a lack of a District drawing specification. There has been no showing that EBMUD could have or would have produced this specification, and the Court will make no adverse finding.

McMullin suggested that the two probable sources of the water main burst were that the pipe spigot was “overstabbed” into the pipe bell and that the service saddle was installed too close to the bell end. The translation for the layperson is that one pipe was pushed too far into the other pipe, and the connection that allows service to the building was too close to that same connection. The end result is that the pipe was under pressure and finally ruptured. These were installation mistakes, not deliberate design errors. The EBMUD design did not mandate lengths of pipe to use or where to put the service saddle. No design drawings got to this level of detail. Interestingly, despite appearing to rely on the “overstab” theory at trial, Wang Brothers now seems to back away from that theory in favor of the service saddle theory.

Nevertheless, both of these were errors in the field. They were errors by a combination of the contractor hired by Atlas/Hilltop (the overstabbing) and EBMUD crews (not catching the overstabbing, and installing the service saddle too close to the bell end). This does not qualify as “inherent risk presented by the deliberate design, construction, or maintenance of the public improvement.” (See, e.g., *Paterno v. State of California* (1999) 74 Cal.App.4th 68, 87-88 (requiring more than “mere negligence” by personnel); *Bauer v. County of Ventura* (1955) 45 Cal.2d 276, 286 (“The damage to property in this instance resulted not from immediate carelessness but from a failure to appreciate the probability that, functioning as deliberately conceived, the public improvement as altered and maintained would result in some damage to private property. Damage resulting from negligence in the routine operation having no relation to

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the function of the project as conceived is not within the scope of the rule applied in the present case.”.)

Additionally, there was no testimony directly so stating, but on the basis of the testimony received discussing how the service saddle *did* potentially cause the rupture, the Court finds that the service saddle placement would not have caused the rupture absent the overstabbing. In other words, had the spigot pipe not already been placing pressure on the bell end because it was placed too far in, the service saddle placement’s additional stress would not have caused a rupture. That the pipe did not rupture for over 30 years supports this reasoning—it was not such a clear construction defect as to result in immediate failure.

There was *no* evidence that the EBMUD crews would have known about the overstabbing. Although many PVC pipes have lines to prevent such problems, there was no evidence that these pipes had those lines or that the majority of pipes in 1986 had such lines. The construction crew did the work; it was only for EBMUD to inspect and review. Absent guidelines, it would be impossible to know how far the spigot end was inserted. The absence of evidence here means that Wang Brothers cannot show that it was EBMUD’s construction input that caused the rupture.

More importantly, there is no evidence that there was any *deliberate* construction decision that caused this rupture. The errors in the field were, at most, negligence. “Damage caused by the negligent conduct of public employees or a public entity does not fall within the aegis of section 19.” (*Customer Co. v. City of Sacramento* (1995) 10 Cal.4th 368, 381.)

On reply, Wang Brothers appears to be arguing that the Court must follow a negligence standard. Wang Brothers starts with a “deliberate conduct” statement, but that ends with an argument that negligent placement of the service saddle is sufficient for causation as long as it causes an inherent risk. Wang Brothers relies on *Simple Avo Paradise Ranch, LLC v. Southern California Edison Co.* (2024) 102 Cal.App.5th 281, 307, at which a complaint survived demurrer by alleging that the agency knew that its equipment was old and improperly maintained even if the ultimate cause of the harm was negligent conduct. *Simple Avo* quotes *Oroville* (which in turn was citing (*Clement v. State Reclamation Board* (1950) 35 Cal.2d 628, 641 and *Bauer v. County of Ventura* (1955) 45 Cal.2d 276, 284) stating “If damage to private property is substantially caused

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by the inherent risks of the design or construction of a public improvement, a public entity must provide just compensation for the damage, whether it was intentional or the result of negligence by the public entity.” *Simple Avo* cannot stand for the proposition that negligence will suffice, as that is inconsistent with the premise of the entire line of cases culminating in *Oroville*. Rather, as the *very next sentence* of *Oroville* makes clear, “The inherent risk assessment requires a reviewing court to consider whether the inherent dangers of the public improvement as deliberately designed, constructed, or maintained materialized and were the cause of the property damage. (*Oroville, supra*, 7 Cal.5th at 1106 (citing *Pacific Bell, supra*, 81 Cal.App.4th at 607).)⁴

The Court therefore finds that Wang Brothers has failed to prove causation under this inverse condemnation theory.

V. Conclusion

Wang Brothers has therefore failed to prove that EBMUD took its property through inverse condemnation.

⁴ Wang Brothers attempts to distinguish *Paterno* by saying “the Court in *Simple Avo* declined to extend *Paterno v. State of California* (1999) 74 Cal.App.4th 68 which is indicated in the KeyCite heading of the case. (Ramos Decl. ¶ 4.)” KeyCites are not authority, and nothing in *Simple Avo* “declined to extend” *Paterno*.